

STATEMENT OF REASONS
IN RE: ROMAN CATHOLIC ARCHDIOCESE OF NEWARK
SEXUAL ABUSE LITIGATION
ESX-L-8762-19

1. PROCEDURAL HISTORY AND BACKGROUND INFORMATION

On March 21, 2025, the court issued an Order regarding the *in-camera* review of Seton Hall University (“SHU”) documents including the 2019 Latham & Watkins Report (“the Report”) and supporting documents. SHU provided a privilege log and close to 20,500 pages of documents for the court’s review via a secure link.

On September 3, 2025, during a virtual Case Management Conference with Plaintiff’s Liaison Counsel (“PLC”), Roman Catholic Archdiocese of Newark (“RCAN”) and SHU, the court addressed the status of its *in-camera* review. During the conference, the court indicated based on its review thus far, there were documents, such as newspaper articles, that SHU was claiming a privilege which the court questioned why such a document would be deemed privilege. In light of this fact, the court asked SHU to meet and confer with PLC and advise if SHU would agree on producing any documents on privilege log without a court order.

On September 18, 2025, SHU advised the court via correspondence that they did meet and confer with the PLC but could not agree to releasing any documents. SHU included in the correspondence a certification from its General Counsel. The General Counsel stated that: (1) all the documents were prepared by Gibbons, P.C. (“Gibbons”) or Latham & Watkins, LLP (“Latham”); (2) all the documents were requested by Gibbons from SHU in order for Gibbons to render legal advice as a part of SHU’s retention of Gibbons; and (3) after SHU provided the documents to Gibbons, Gibbons in turn shared them with Latham.

2. ATTORNEY CLIENT PRIVILEGE AND THE WORK PRODUCT DOCTRINE

Pursuant to N.J. Stat. Ann. § 2A:84A-20 (2014), attorney-client privileged is defined as:

“[s]ubject to Rule 37 and except as otherwise provided by paragraph 2 of this rule communications between a lawyer and his client in the course of that relationship and in professional confidence, are privileged, and a client has a privilege (a) to refuse to disclose any such communication, and (b) to prevent his lawyer from disclosing it, and (c) to prevent any other witness from disclosing such communication if it came to the knowledge of such witness (i) in the course of its transmittal between the client and the lawyer, or (ii) in a manner not reasonably to be anticipated, or (iii) as a result of a breach of the lawyer-client relationship, or (iv) in the course of a recognized confidential or privileged communication between the client and such witness.”

Pursuant to R. 4:10-2(c), the work product doctrine is defined as:

“party may obtain discovery of documents, electronically stored information, and tangible things otherwise discoverable . . . and prepared in anticipation of litigation or for trial by or for another party or by or for that other party's representative (including an attorney, consultant, surety, indemnitor, insurer or agent) only upon a showing that the party seeking discovery has substantial need of the materials in the preparation of the case and is unable without undue hardship to obtain the substantial equivalent of the materials by other means. In ordering discovery of such materials when the required showing has been made, the court shall protect against disclosure of the **mental impressions, conclusions, opinions, or legal theories of an attorney or other representative of a party concerning litigation**” (*emphasis added*).

The New Jersey Supreme Court has recognized multiple exceptions to both attorney-client privilege and the work product doctrine. *In re Kozloz*, 79 N.J. 232 (1979), the Supreme Court established a three part test to pierce the privilege: “(1) there must be a legitimate need for the evidence; (2) the evidence must be relevant and material to the issue before the court; and (3) by a fair preponderance of the evidence, the party must show that the information cannot be secured from any less intrusive source”. *Id.* at 243-44.

The Appellate Division held “communications need not only be among counsel for the clients”. *LaPorta v. Gloucester Cty. Bd. of Chosen Freeholders*, 340 N.J. Super. 254, 262 (App. Div. 2001). The common interest exception applies when: “(1) the disclosure is made due to actual or anticipated litigation; (2) for the purposes of furthering a common interest; and (3) the disclosure is made in a manner not inconsistent with maintaining confidentiality against adverse parties”. *Id.* Further, “it is not necessary for every party's interest to be identical for the common interest privilege to apply[,] rather, the parties must simply have a ‘common purpose’”. *Id.*

New Jersey applies the common interest doctrine when “sharing confidential communications between an attorney and client with third parties and in the context of sharing work product with third parties”. *O’Boyle v. Borough of Longport*, 218 N.J. 168, 191 (2014). “The common interest rule is designed to permit the free flow of information between or among counsel who represent clients with a commonality of purpose. It offers all parties to the exchange the real possibility for better representation by making more information available to craft a position and inform decision-making in anticipation of or in the course of litigation.” *Id.* at 197.

3. THE COURT’S FINDINGS AS TO APPLICATION OF ATTORNEY CLIENT PRIVILEGE AND THE WORK PRODUCT DOCTRINE TO THE DOCUMENTS REVIEWED *IN-CAMERA*

SHU argues that all documents provided to Latham by Gibbons and any documents received or created by Latham are protected by both attorney-client and/or the work product doctrine. Specifically, SHU argues that since SHU hired Gibbons and Gibbons then hired Latham, SHU is protected under the common-interest exception. To support this argument, SHU relies heavily on the holding in *State v. Davis*, 116 N.J. 341 (1989), where the Supreme Court held that attorney-client privilege extended to communications made to a private investigator acting on behalf of counsel. In *Davis*, the question before the Court was whether the prosecution’s use of a certain statement made by the defendant to an investigator violated attorney-client privilege. The prosecutor had introduced at the trial defendant’s statement to an investigator to impeach the

credibility of a defense witness. In addressing whether the trial court erred in admitting defendant's statement to an investigator whom he may have assumed to have been sent by an attorney acting in his behalf, the Court explained in New Jersey, it has long been recognized that a client's privileged communications are "permanently protected from disclosure by himself, or by the legal advisor, or by the agent of either confidentially used to transmit the communication." (citing to *State v. Lophonio*, 85 N.J.L. 357, 360 (E. & A. 1913)). This privilege has been held to include confidential communications to private investigators acting on behalf of counsel for defendant.

The court finds that the facts in *Davis* are distinguishable from the facts in the present case. In the present situation, in August 2018, the then interim President of SHU announced that SHU was initiating an independent investigation of allegations involving Cardinal Theodore McCarrick ("McCarrick") and that it hired Gibbons as special counsel to SHU. Then Gibbons hired Latham to conduct an independent factual investigation for Gibbons. The court finds that Gibbons and Latham had an attorney-client relationship, but it did not extend to SHU. In the Report, Latham explicitly stated the following: "Latham's mandate was to conduct an independent factual investigation. In this regard, we note that Gibbons (and not the University) was Latham's client in this matter, that the University has never been a Latham client, and that Latham will not represent the University in any matter related to these allegations. In addition, no member of the Latham investigative team has any historical or current connections to the University." (Latham Report, pg. 9, p. 3A). In *Davis*, there was no such disclaimer made by the private investigator to the defendant.

In its privilege log, SHU asserts there are three categories of documents protected by the attorney-client or work-product privilege including the Latham Report: emails; attachments; and electronic files.

A. THE LATHAM 2019 REPORT

Given the facts in this case and Latham expressly disclaiming SHU as their client, the court finds that the Latham Report is not protected by the attorney-client privilege. Even if there was an attorney-client relationship between SHU and Latham, the court finds under *Kozloz*, the plaintiffs have satisfied the three-prong test to pierce the privilege. There is a legitimate need for the evidence; the evidence is material and relevant, and by the fair preponderance of the evidence, the plaintiffs have shown that the information cannot be secured from any less intrusive source. *Id.* at 243-44.

Turning to the work-product doctrine, which the court finds may be applicable to the Latham Report as SHU has maintained Gibbons and in turn Latham was hired to conduct the investigation in anticipation of litigation, under R. 4:10-2(c), plaintiffs have shown there is a substantial need for the documents in support of their allegations against SHU and are unable without undue hardship to obtain the substantial equivalent of the materials by other means. As such the court finds SHU must produce the Latham Report to plaintiffs. However, the court will protect the conclusions in the Report from disclosure. SHU shall redact the conclusions in the Latham Report prior to production.

B. EMAILS

The court finds that any email communications with Gibbons, SHU and Latham are protected by attorney-client privilege. "It is well-settled under New Jersey law that communications between

lawyers and clients "in the course of that relationship and in professional confidence" are privileged and therefore protected from disclosure." *Hedden v. Kean Univ.*, 434 N.J. Super. 1, 10 (App. Div. 2013). Since Gibbons and SHU have an attorney-client relationship, this court finds all emails between them, which also includes Latham is protected. However, any emails that were sent/received by Latham **only** that do not include Gibbons and SHU on the email chain are not protected and shall be produced to plaintiffs.

C. ATTACHMENTS

"Documents or records kept by a client do not gain protection under the attorney-client privilege simply because the attorney advised that the client keep them and they were eventually sent to the attorney. If it were, otherwise, an attorney and client could cause records otherwise subject to disclosure to become privileged". *K.L. v. Evesham Tp. Bd. of Educ.*, 423 N.J. Super. 337, 352 (App. Div. 2011). Furthermore, any attachments in emails that were sent or received by third parties to which Gibbons or SHU are not included, are also not privileged and must be turned over. "Merely attaching something to a privileged document will not, by itself, make the attachment privileged". *Id.*; *see also Payton v. N.J. Tpk. Auth.*, 148 N.J. 524 (1997). For this category, the court notes thousands of pages of documents designated as attachments that pre-dated the retention of Gibbons and Latham and were maintained by SHU. The court finds that such documents are not protected by either the attorney-client or work-product privilege.

D. ELECTRONIC FILES

With respect to the electronic files, the same analysis as above applies to this category of documents. The court notes documents in this category included employment files, policies that have been maintained by SHU. All documents designated as electronic files which were created and maintained prior to the investigation conducted by Gibbons/Latham are to be produced by SHU. As these files are not privileged by either attorney-client privilege or the work product doctrine.

For the reasons stated on the record and included herein, SHU is hereby ordered to produce the Latham 2019 Report, redacted to exclude the conclusions; all emails that do not include SHU, Gibbons and Latham on the email chain; all attachments that were created/maintained by SHU including documents that pre-date the start of this investigation; and all electronic files created/maintained by SHU that pre-date the start of this investigation.

SO ORDERED.